

Lords adjudg'd it a trespass ; for the powers raised were not against the King, but some subjects.

Why then by like reason may not this return be sufficient, though the fact for which the prisoners stood committed particularly express'd, might be no cause of commitment?

[143] The cases are not alike ; for upon a general commitment for treason or felony, the prisoner (the cause appearing) may press for his tryal, which ought not to be denied or delayed, and upon his indictment and tryal, the particular cause of his imprisonment must appear, which proving no treason or felony, the prisoner shall have the benefit of it. But in this case, though the evidence given were no full nor manifest evidence against the persons indicted, but such as the jury upon it ought to have acquitted those indicted, the prisoner shall never have any benefit of it, but must continue in prison, when remanded, until he hath paid that fine unjustly impos'd on him, which was the whole end of his imprisonment.

We come now to the next part of the return, viz. that the jury acquitted those indicted against the direction of the Court in matter of law, openly given and declared to them in Court.

1. The words, that the jury did acquit, against the direction of the Court, in matter of law, literally taken, and *de plano*, are insignificant, and not intelligible ; for no issue can be joyn'd of matter in law, no jury can be charg'd with the tryal of matter in law barely, no evidence ever was, or can be given to a jury of what is law, or not ; nor no such oath can be given to, or taken by, a jury, to try matter in law ; nor no attaint can lye for such a false oath.

Therefore we must take off this vail and colour of words, which make a shew of being something, and in truth are nothing.

If the meaning of these words, finding against the direction of the Court in matter of law, be, that if the Judge having heard the evidence given in Court (for he knows no other) shall tell the jury, upon this evidence, the law is for the plaintiff, or for the defendant, and you are under the pain of fine and imprisonment to find accordingly, then the jury ought of duty so to do ; every man sees that the jury is but a troublesome delay, great charge, and of no use in determining right and wrong, and therefore the tryals by them may be better abolish'd than continued ; which were a strange new-found conclusion, after a tryal so celebrated for many hundreds of years.

For if the Judge, from the evidence, shall by his own judgment first resolve upon any tryal what the fact is, and so knowing the fact, shall then resolve what the law is, and order the jury penally to find accordingly, what either necessary or convenient use can be fancied of juries, or to continue tryals by them at all?

[144] But if the jury be not oblig'd in all tryals to follow such directions, if given, but only in some sort of tryals (as for instance, in tryals for criminal matters upon indictments or appeals) why then the consequence will be, though not in all, yet in criminal tryals, the jury (as of no material use) ought to be either omitted or abolished, which were the greater mischief to the people, than to abolish them in civil tryals.

And how the jury should, in any other manner, according to the course of tryals us'd, find against the direction of the Court in matter of law, is really not conceivable.

True it is, if it fall out upon some special tryal, that the jury being ready to give their verdict, and before it is given, the Judge shall ask, whether they find such a particular thing propounded by him? or whether they find the matter of fact to be as such a witness, or witnesses have depos'd? and the jury answer, they find the matter of fact to be so ; if then the Judge shall declare, the matter of fact being by you so found to be, the law is for the plaintiff, and you are to find accordingly for him.

If notwithstanding they find for the defendant, this may be thought a finding in matter of law against the direction of the Court ; for in that case the jury first declare the fact, as it is found by themselves, to which fact the Judge declares how the law is consequent.

And this is ordinary, when the jury find unexpectedly for the plaintiff or defendant, the Judge will ask, how do you find such a fact in particular? and upon their answer he will say, then it is for the defendant, though they found for the plaintiff, or *è contrario*, and thereupon they rectifie their verdict.

And in these cases the jury, and not the Judge, resolve and find what the fact is.

Therefore alwaies in discreet and lawful assistance of the jury, the Judge his direction is hypothetical, and upon supposition, and not positive, and upon coercion.